

# PUBLIC SUBMISSION

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**Docket:** NSF\_FRDOC\_0001

Recently Posted NSF Rules and Notices.

**Comment On:** NSF\_FRDOC\_0001-3479

Request for Information: Development of an Artificial Intelligence Action Plan

**Document:** NSF\_FRDOC\_0001-DRAFT-8430

Comment on FR Doc # 2025-02305

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## General Comment

We created and uphold copyright because we want to recognize that the act of creating is special. That the person who invented the cartoon mouse out of nothing did something more valuable than the person who just photocopied it.

Allowing the AI systems made by Big Tech companies like OpenAI (Microsoft) and Google to exempt themselves from copyright law is disgusting, chilling, and unamerican.

AI systems cannot create, they can only disassemble and reassemble. They are “trained” by digesting and disassembling the creations of others, actual humans, without their consent, approval, or compensation.

The purpose of fair use is to avoid stifling the rights of the public to comment or report on or satirize copyrighted works. It explicitly condemns use intended to replace or supersede the original as piracy.

We allow fair use when the work is substantially transformative, but what does that mean? If I overlay a gif of a dancing baby in the corner of the screen for the entire extended edition of the Lord of the Rings films, I haven’t earned the right to send digital copies to all my friends. Transformation requires the same thing as copyright - creation. Human intent.

If I go and tell an AI “art” bot to create an illustration “in the style of” and name a specific artist, it is clearly making use of that artist’s work without actually showing any - very clearly replacing and superseding, with no intent on the part of the programmers or owners - SELLERS - of this tool to direct me in any way to the artist whose work I have just appropriated.

If I don’t name a specific artist but instead a style, or a subject, it is doing EXACTLY THE SAME THING, replacing the art which has been tagged with those same keywords with the “new” configuration of pixels it has determined to be most similar. That is piracy.

If downloading a copy of a video file containing part of Jerry Maguire is akin to “stealing a car,” these companies have just looted the Louvre. Do not let them profit off of this. Hold them accountable.